

-

File No.: EXP202404724

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on February 17, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On February 17, 2024, a complaint was received by this Agency filed by Ms. A.A.A. (hereinafter, the complainant) against IBERCAJA BANCO, S.A. (hereinafter, the respondent) for not having adequately addressed her right of access to her personal data.

On November 19, 2023, the complainant sent an email to the respondent requesting access to her personal data and that of her spouse "(...) within the framework of the contractual relationships we had with the Bank, until their termination on 02/23/2023, and especially the mobile numbers that were provided and consented to the entity (...)".

On November 29, 2023, Ibercaja responded by providing the data of her spouse and denying that of the complainant:

"Third. - It is communicated that, in compliance with the provisions of the aforementioned article 32 in its second and third paragraphs, it is not possible to indicate the exact details of the request for the exercise of the data protection right that you made, which, in compliance with what is stated in the previous paragraph, resulted in the mentioned blocking. The reason for this is the prohibition of all processing, including its viewing, that the aforementioned paragraphs impose on Ibercaja, with your data only being available to Judges and Courts, the Public Prosecutor's Office, and Public Administrations during the statute of limitations for actions arising from the contractual relationship you maintained with this entity. The indicated paragraphs are reproduced below as they are deemed of interest to you: (... Art. 32.2 and 32.3 LOPDGDD)

Fourth.- In consideration of the other aspects you have the right to know as an exerciser of the right of access, as a former client, in accordance with the provisions of Article 15 of the aforementioned Regulation (EU) 2016/679, specifically, (i) the purposes of the processing, (ii) the categories of personal data processed, (iii) the recipients or categories of recipients of your personal data, (iv) the retention period of your data, (v) the data protection rights that you have, (vi) the origin of the personal data processed at Ibercaja, (vii) the existence of automated decisions, as well as (viii) the existence of international data transfers, we inform you that they are related in the additional customer data protection information, accessible at www.ibercaja.es/privacidad"

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/10

Dissatisfied with the response, on December 13, 2023, the complainant again requested access to her personal data referencing several resolutions from the Spanish Data Protection Agency regarding blocked data "(...) to provide me with my personal data processed, in order to be able to prove the possible responsibilities of the entities that handle my private data without consent. As of today, February 19, 2024, I have not received any response (...)"

Along with the complaint, the complainant submitted:

- A copy of her ID.

- A copy of the emails and documents of the requests for the right of access sent to the respondent, as well as the responses from the latter.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent stated that:

“SECOND.- The complainant exercised her right of access to her personal data on November 19, 2023. My client responded to the complainant on November 29, 2023; we attach a copy of the document resolving the aforementioned right of access as Document No. 1.

THIRD.- As informed to the complainant, my client did not grant the right of access because her data was blocked at the time she exercised her right of access. We provide as Document No. 2 a screenshot evidencing the blocking of the complainant's data and the communication letter informing the complainant of the said blocking as Document No. 3.

Her data had been blocked as of May 29, 2023, that is, prior to the exercise of the right of access by the complainant.

In accordance with paragraph 2 of Article 32 of LO 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights, the blocking of data consists of the identification and reservation of the same, adopting technical and organizational measures to prevent their processing, including their viewing, except for making the data available to judges and courts, the Public Prosecutor's Office, or the competent Public Administrations, particularly data protection authorities, for the enforcement of possible responsibilities arising from the processing and only for the statute of limitations period for such responsibilities. After that period, the data must be destroyed.

Furthermore, paragraph 3 of this article states that blocked data may not be processed for any purpose other than that indicated in the previous paragraph.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/10

By virtue of the above, the right of access was denied since it was exercised by the claimant when the data was already blocked."

THIRD: According to Articles 64.1 and 65.5 of the LOPDGDD, the decision on the admission or inadmission of the claim must be notified to the claimant within three months. As stated, and considering that the claim was submitted to this Agency on February 17, 2024, the procedure for handling the request to exercise rights is considered initiated on May 17, 2024.

The admission agreement granted the respondent a hearing period, so that within ten working days it could present the arguments it deemed appropriate.

The respondent stated, in summary, that "(...) The reason that has motivated this claim is the denial of the right of access to their data exercised by the claimant, as reported to this Agency.

The claimant, as recorded in the claim file, exercised the right of access to their personal data against Ibercaja on November 19, 2023.

My represented party responded to the claimant on November 29, 2023, indicating that it was not appropriate to grant the right of access to their data as it was blocked at the time the claimant exercised their right of access.

We provide as Document No. 1 a screenshot evidencing the blocking of the claimant's data and the letter dated May 29, 2023, in which the claimant was informed of the aforementioned blocking as Document No. 2.

From this documentation, it follows that the claimant's data had been blocked on May 29, 2023, that is, six months before the response to the right of access exercised by the claimant and which is the subject of this claim.

The claimant did not simultaneously exercise the rights of access and deletion of their data, in which case the right of access could have been responded to before proceeding to block the claimant's data. In the case subject to this claim, the claimant exercised the right of access to their data when it was already blocked since the contractual relationship with my represented party had concluded.

Since its blocking, my represented party has not been processing the claimant's data.

In accordance with the second paragraph of Article 32 of LO 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights, the blocking of data consists of the identification and reservation of the same, adopting technical and organizational measures to prevent its processing, including its visualization, except for making the data available to judges and courts, the Public

Prosecutor's Office, or the competent Public Administrations, particularly data protection authorities, for the enforcement of possible liabilities arising from the processing and only for the period of limitation of the same. After that period, the data must be destroyed.

Furthermore, in the third paragraph of this article, it is indicated that blocked data may not be processed for any purpose other than that indicated in the previous paragraph.

From the wording of this regulation, it follows that once the data is blocked, it can only be made available to judges and courts, the Public Prosecutor's Office, or the competent Public Administrations, particularly data protection authorities, for the purpose and for the period established.

Thus, the claimant was informed in the response dated May 29, 2023 (see Document No. 2):

....., the blocking of your personal data has been carried out in the manner provided for, and with the effects established in, Article 32 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights.

In accordance with the above, your data has been made available to Public Administrations, the Public Prosecutor's Office, Judges, and Courts of Justice, for the time necessary for the limitation of possible liabilities arising from the contractual relationship maintained with you.....

In accordance with the above, the right of access to their data was responded to the claimant, in the terms of the response sent to the claimant on November 29, 2023, a communication that is attached as Document No. 3.”

FOURTH: Having examined the document submitted by the respondent, it is transferred to the claimant, so that, within ten working days, they may formulate the allegations they deem appropriate, reiterating, in summary, and as far as this procedure is concerned, their request.

“The respondent Ibercaja, through its representative, repeatedly justifies the denial of my request to exercise the right of access to my personal data, in the blocking it carried out on the same, on March 29, 2023, after my request for it to stop consulting and accessing my personal data in the Badexcug solvency files, a blocking that the banking entity carried out upon verifying and realizing that these consultations were made illegitimately, as they were not authorized by this party and the contractual relationship between the two parties had ended prior to those unauthorized accesses, resulting in a security breach in the processing of my personal data, (...).

“In relation to the denial resolution of Ibercaja dated November 29, 2023 (...) in order to know and also to prove before various authorities, whether my personal data was being processed in accordance with the legislation.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/10

in force and regarding data protection, either by Ibercaja Banco S.A. or by third-party assignees of the contracts, and to be able to substantiate possible liabilities and be delineated by various judicial bodies and the competent data protection authorities, since a series of mobile phone numbers (which were neither provided nor consented to by this party to Ibercaja Banco S.A. within the framework of the contractual relationships I had with that entity) were being used for systematic harassment, as well as the disclosure to relatives, who are users of these telephone lines, who had nothing to do with this matter, through the sending of SMS messages containing aspects and information about the contracts and data provided by the banking entity.”

FIFTH: Having granted a hearing to the responding party, it states, as far as this procedure is concerned, that

“(...) As already indicated, the present claim is strictly limited to the denial of the right of access exercised by the claimant before my represented entity.

In this regard, as this party has explained and substantiated, both in the allegations made on April 29, 2024, and in the allegations dated June 12, 2024, which we now reproduce in full to avoid unnecessary reiterations, at the time the claimant exercised their right of access before this entity, their personal data was blocked, which is why this entity denied their right of access.

In particular, as substantiated by documents 1, 2, and 3 of our allegations dated April 29, 2024, and

documents 1 and 2 of our allegations dated June 12, 2024, the claimant's personal data was blocked at this entity on May 29, 2023, so that as of the date of exercising the right of access - November 19, 2023 - their personal data was already blocked.

Regarding the resolutions of that Agency cited by the claimant, they may not deal with identical factual situations to the one currently at hand, in which the data was already blocked at the time of exercising the right of access, not involving the simultaneous exercise of the rights of access and deletion."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/10

in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month and to demonstrate that they had provided the complainant with the appropriate response.

The outcome of this forwarding did not allow for the satisfaction of the complainant's claims.

Consequently, on May 17, 2024, for the purposes provided in Article 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the initiation of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states: "When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to rectify any infringement of the GDPR, including "ordering the controller or processor to address the

requests for the exercise of the rights of the data subject under this Regulation."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
7/10

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

According to Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR). The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

8/10

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and

freedoms of others.

V

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in the data protection regulations. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties.

In this case, and taking into account the provisions of the previous paragraph, from the documentation provided by the parties, it has been established that the complainant requested access to their personal data and that this request was denied because their data is blocked.

Article 32 of the LOPDGDD, regarding the blocking of data, states the following:

“1. The data controller shall be obliged to block the data when it proceeds to its rectification or erasure.

2. The blocking of data consists of the identification and reservation of the same, adopting technical and organizational measures, to prevent its processing, including its viewing, except for the provision of the data to judges and courts, the Public Prosecutor's Office, or the competent Public Administrations, in particular the data protection authorities, for the enforcement of possible liabilities arising from the processing and only for the limitation period of such liabilities. After this period, the data must be destroyed.

3. Blocked data may not be processed for any purpose other than that indicated in the previous section.

4. When, for the fulfillment of this obligation, the configuration of the information system does not allow blocking or requires an adaptation that involves a disproportionate effort, a secure copy of the information must be made.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/10

so that there is digital evidence, or of another nature, that allows for the authentication of the same, the date of the blocking, and the non-manipulation of the data during the same.

5. The Spanish Agency for Data Protection and the autonomous data protection authorities, within the scope of their respective competencies, may establish exceptions to the obligation of blocking set forth in this article, in cases where, given the nature of the data or the fact that they refer to a particularly high number of affected individuals, their mere conservation, even when blocked, could generate a high risk for the rights of the affected individuals, as well as in those cases where the conservation of the blocked data could imply a disproportionate cost for the data controller.

In this regard, it should be noted that, when exercising the right of access, it cannot be accepted that, in the event of blocking personal data, the right of access exercised is left unanswered.

Blocking prevents its processing, but does not imply that the personal data that the controller had and processed while the contractual relationship lasted cannot be made available to the affected individual, in case responsibilities arising from its processing could arise from it, as is the case here.

According to personal data protection regulations, the deletion of data, as established in Article 32 of the LOPDGDD, requires the controller to block the same, but while such blocking makes certain processing operations impossible, it does not automatically imply their physical deletion.

The purpose of blocking is to reserve the data to prevent its active processing or visualization, remaining available to the Courts, the Public Prosecutor's Office, or other competent public administrations, particularly the personal data protection authorities, for the requirements of possible responsibilities arising from the processing and for the statute of limitations of these responsibilities. However, this provision cannot be interpreted as a restriction on the right of access of the data subject, as attending to such access does not imply processing of data in itself, but rather the exercise of compliance with an obligation imposed by personal data protection regulations. Limitations or restrictions on the right of access are established in Articles 12.5, 15.4, and 23 of the GDPR, without, according to Guidelines 01/2022 on the rights of data subjects — Right of access adopted on March 28, 2023, “there being other exemptions or exceptions.” In the case examined, there is no legal norm

that exempts the controller from attending to the right of access in the event that the data is blocked.

In short, the claimant has exercised the right of access regarding the personal data that concerns them, so the respondent must provide the claimant with their right of access without negatively affecting the rights and freedoms of other individuals, all in accordance with the terms provided in the GDPR.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

10/10

As a consequence of the above, it is appropriate to uphold the complaint presented.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Ms. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge IBERCAJA BANCO, S.A. with NIF A99319030, to send the claimant a certification addressing the requested right, in accordance with the provisions established in the body of this resolution, within ten working days following the notification of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to IBERCAJA BANCO, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es